



U.S. Department
of Transportation

Research and
Special Programs
Administration

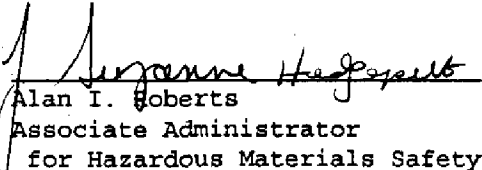
400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9971 (EXTENSION)
FIRST REVISION December 13, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9971 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

MAY 27 1994


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Fisher Scientific Company
Pittsburgh, PA

February 25, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

DEC 13 1989

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9971
(FIRST REVISION)

1. Fisher Scientific Company, Fair Lawn, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of the hazardous materials described in paragraph 3 below for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes use of DOT Specification 12A fiberboard boxes, with hand holes, for shipment of certain flammable liquids and corrosive materials, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

J.T. Baker Inc., Phillipsburg, NJ-PTE-1.

2. BASIS. This exemption is based on Fisher Scientific Company's applications dated April 12, 1988 and June 20, 1989, and supplemental letter dated March 23, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

J.T. Baker Inc.'s application dated March 23, 1989.

3. HAZARDOUS MATERIALS (Descriptor and class). Flammable liquids and corrosive liquids for which the packagings in 49 CFR 173.119(a)(23) and 173.245(a)(18), respectively, are prescribed; classed as flammable liquid and corrosive material, respectively.

4. PROPER SHIPPING NAME (49 CFR 172.101). Generic commodity description or specific chemical name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(a)(23); 173.245(a)(18); 174.3; 175.3; 176.3(a) and 178.210.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel and cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a corrugated fiberboard box which conforms with the requirements of a DOT Specification 12A box except that it has two hand holes on opposite faces of the box, above the shoulder of the bottle. The box must be constructed to the specification and design described in Fisher Scientific Company Packaging Specification No. 11305 dated 8/10/87 submitted with the application. Box closed as for shipment must be capable of satisfactorily withstanding performance tests prescribed in 49 CFR 178.210-10, as well as other tests specified in the application.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft and cargo vessel used to transport packages covered by this exemption.

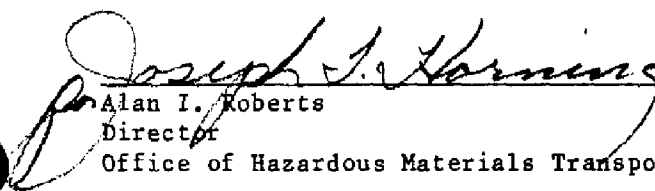
b. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. October 20, 1990.

Issued at Washington, D.C.:

DEC 13 1989



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FAA